

Subject: Evidence Submission – Enforcement Gap under the Autism Act 2009 and FPR Part 3A
Date: Friday, October 24, 2025 at 10:19:16 AM British Summer Time
From: Nadia <nadia@rosekross.com>
To: HLAutismAct2009@parliament.uk <HLAutismAct2009@parliament.uk>
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Priority: High
Attachments: Zahmoul_Nadia_Letter_to_AutismAct2009Committee_24Oct2025.pdf, Pre-Action Protocol Letter + Annex A .pdf, Follow-Up Pre-Action Letter – Unlawful Revocation of Participation Measures (21 Oct 2025).pdf, Application Bundle CA-2024-001342 (Part 3A Procedural Breach Evidence).pdf, Letter from the Minister of State for Care dated 5 August 2025 to the Chair of the Committee.pdf

Dear Baroness Rock and Members of the Autism Act 2009 Committee,

I am writing to submit formal evidence regarding systemic failures in the family justice system to uphold the participation duties required under **FPR Part 3A** and the **Equality Act 2010**. My case demonstrates how autism-related communication and behavioural traits were misinterpreted as misconduct, and how disability participation measures were unlawfully revoked post-trial, resulting in unfair and discriminatory findings.

This evidence reveals a critical enforcement gap under the **Autism Act 2009**: there is currently no statutory or independent mechanism enabling autistic or otherwise vulnerable court users to challenge non-compliance with participation duties. As **Minister Stephen Kinnock MP** recently confirmed to your Committee, “there are no statutory powers of intervention... a failure could only be considered by the courts using judicial review.” This leaves disabled parties without any practical means of redress when the courts themselves fail to comply with their duties.

The attached documentation is submitted as supplementary evidence for the Committee’s ongoing inquiry. It includes a detailed account of how judicial reasoning in my case suppressed all reference to my autism and PTSD, despite extensive medical and procedural evidence. This suppression created the factual vacuum in which the Court miscast disability-linked traits as character flaws.

I respectfully request that this submission be considered for inclusion in the Committee’s final report and recommendations, as it goes directly to the heart of the Committee’s mandate: ensuring that the **Autism Act 2009** provides real, enforceable protection for autistic people in practice, not only in principle.

This correspondence is also copied to the **Ministry of Justice** and **HM Courts & Tribunals Service** for institutional accountability.

I remain available to provide written or oral evidence to the Committee at short notice.

Yours sincerely,

Nadia Zahmoul

Email: nadia@rosekross.com

Attachments:

Letter to Baroness Rock – Autism Act 2009 Committee (22 Oct 2025)

Pre-Action Protocol Letter (20 Oct 2025)

Follow-Up Letter on Unlawful Revocation of Participation Measures (21 Oct 2025)

Application Bundle CA-2024-001342 (Procedural Fairness and Equality Act Breach Evidence)

Letter from the Minister of State for Care to the Chair of the Committee (5 August 2025)